

judgment amount should be \$4,011.94.

The Stipulation was filed on 6/23/26.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,011.94.

Plaintiff to file order on Motion, as well as submit Judgment.

5. 9:00 AM CASE NUMBER: L25-03749
CASE NAME: BRIAN BURNETT VS. KILLARNEY PROPERTIES
STRIKE DEFENDANT'S LATE ANSWER
FILED BY: BURNETT, BRIAN

TENTATIVE RULING:

Plaintiff has filed a Motion to Strike the Answer of Defendant because it was late.

Defendant, in their Response, contends that the late filing occurred only after a good faith attempt to file within the appropriate time period was rejected for a minor error.

Plaintiff filed a Reply in which he essentially argues that a late filing is a late filing.

Background

This court granted leave to Defendant, on 4/14/26, to file an Answer to the Complaint within 10 days, after setting aside entry of default and default judgment.

Defendant formally filed their Answer on 5/7/26, the filing of which this court takes judicial notice.

In the Response, counsel for Defendant declares that he attempted to file the Answer on 4/21/26, but it was rejected because of form errors. Specifically, the exhibit reflects that the Court Clerk rejected the Answer on 4/21/26 because the Answer apparently did not indicate that it was an answer to an amended complaint; and because counsel mistakenly indicated that the Defendant was self-represented.

This court also notes that Defendant provided a proposed Answer in their Motion to Set Aside, filed on 1/28/26.

Analysis

Section 473(a)(1) of the CCP permits a court to extend the term for a party to file an Answer, in the furtherance of justice.

The facts of the instant matter fall squarely within the spirit of this statute. Defendant clearly attempted in good faith to follow the court's instructions. The reasons Defendant was unsuccessful

were due to minor, clerical errors. What's more, Defendant had already included a proposed answer with their earlier motion to set aside the default judgment, so this is not a case where Plaintiff is caught by surprise.

The furtherance of justice compels this court to allow the filing of the late Answer in this matter.

Disposition

Plaintiff's Motion is Denied.

Defendant to file Order.

**6. 9:00 AM CASE NUMBER: L25-03749
CASE NAME: BRIAN BURNETT VS. KILLARNEY PROPERTIES
FOR ORDER TO SHOW CAUSE AND SANCTIONS FOR VIOLATION OF COURT ORDER
FILED BY: BURNETT, BRIAN
*TENTATIVE RULING:***

Plaintiff has a filed a motion requesting this court to issue an order show cause for Plaintiff's apparent violation of a 4/14/26 Order in which this court directed Defendant to file their Answer within 10 days.

The Plaintiff requests sanctions under various statutes, such as: CCP 128 (Contempt); CCP 177.5 (Court's general power to issue sanctions for order violations); CCp 575.2 (Sanctions for violations of local rules); and, CRC 2.30 (general sanctions authority for rule violations).

Background and Analysis

The court, in its analysis on Plaintiff's separate motion in this matter stemming from the same issue, found that though Defendant may have filed their Answer nearly 2 weeks late, Defendant made a good faith effort to comply with the court's order and, had it not been for 2 minor clerical errors, would have successfully filed their Answer before the proper deadline.

This court does not find that Defendant engaged in any conduct that would warrant sanctions.

Disposition

Plaintiff's Motion is denied.

Defendant to file Order.

7. 9:00 AM CASE NUMBER: L25-05850